



Code: ECAB
Adopted: 7/21/21

Vandalism, Malicious Mischief or Theft**

Students and the school community are urged to cooperate in reporting any incidents of vandalism, malicious mischief or theft and the name or names of the person or persons believed to be responsible.

Each employee will report to the administrator/principal or other person in authority incidents of vandalism, malicious mischief or theft and the name of the person or persons responsible, if known.

The administrator/principal will submit a report of any significant vandalism, malicious mischief, theft or damage to the school, to the Board.

The administrator/principal is authorized to sign a criminal complaint and to press charges against those committing acts of vandalism, malicious mischief or theft, of or against HCCS property. It is the policy of the Board to seek all legal remedies against persons found to have committed such acts. Full restitution for the damage will be sought from such persons, or, in the case of minors, from their parents. Until such fees or restitutions are paid, certain restrictions and/or penalties may be imposed. Records requested by another district or public charter school to determine a student's appropriate placement may not be withheld.

A student who willfully destroys HCCS property through vandalism, malicious mischief, theft or arson, who commits larceny or who creates a hazard to the safety of other people on HCCS property will be disciplined in accordance with state law and the Board's policy on student suspensions and expulsions and referred to law enforcement.

Any staff member who fails to report such an act, or willfully destroys HCCS property through vandalism, malicious mischief, theft or arson, who commits larceny or who creates a hazard to the safety of other people on HCCS property will be disciplined, up to and including dismissal and may be referred to law enforcement.

HCCS is not liable or responsible for personal property brought onto HCCS property.

END OF POLICY

Legal Reference(s):

[ORS 30.765](#)
[ORS 164.345](#)
[ORS 164.365](#)

[ORS 326.575](#)
[ORS 338.115\(2\)](#)

[ORS 339.270](#)
[ORS 419C.68](#)

Cross Reference(s):

JFC - Student Conduct
JN - Student Fees, Fines and Charges
JO/IGBAB - Education Records/Records of Students with Disabilities
KGB - Public Conduct on Public Charter School Property